

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) on March 21, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against whom they identify as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows: "(...) has installed two cameras in their home directed at the complainant's residence, without having authorization for this."

They provide images of the location of the cameras (Annex I frames 1-2).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on April 19, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified in due time and form as evidenced by the acknowledgment of receipt in the file.

THIRD: On June 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On July 10, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement in which, in summary, they argue the following:

"that they have proceeded to remove the devices, installing in their place motion sensors (...) and provide the names of two neighbors as witnesses if deemed appropriate.

That in the Initiation Agreement of the procedure, there is NO reference to the allegations dated May 26, 2023, which were submitted to the Official Postal Service (...)"

SIXTH: On October 13, 2023, a was issued proposing the filing of the procedure as no administrative infringement has been proven in the matter at hand.

SEVENTH: Upon consulting the database of this Agency on December 4, 2023, no response has been received regarding the proposal made.

From the actions carried out in this procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated March 21, 2023, through which the following is conveyed:

"(...) has installed two cameras in their home directed at the complainant's residence, without having authorization for this."

Second. It is established that B.B.B. is the main responsible party, who has proceeded to install a video surveillance camera system.

Third. It is established that the devices in question have been removed and replaced with motion sensors, providing documentary evidence to that effect.

Fourth. The processing of third-party data could not be proven, as there were no claims regarding possible recordings of images, nor is there evidence of their dissemination.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions..."

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

II

In the present case, the claim dated 21/03/23 is examined, whereby the following main fact is presented:

"installation of security cameras that affect your personal and family privacy without justified cause, causing you a series of personal damages" (folio no. 1).

Two documentary pieces of evidence are provided that allow for the verification of the presence of two devices whose orientation is not limited to the interior of the private property (Annex I).

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements set forth by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards the private space, avoiding intimidating

neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Moreover, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, complying with the requirements of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth remembering that even in the case of a "simulated" camera, it must preferably be oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who feel intimidated by them, affecting their free transit area or private space.

III

The responding party submitted a document on 21/09/23 stating that "they have proceeded to remove the device, replacing it with two motion sensors," providing documentary evidence numbered 2 as proof in this regard.

In the framework of the preliminary investigation proceedings, there is no response to the requests made on 10/05/23, where information was requested regarding this matter.

The responding party provides documentation (Doc. no. 1) where they responded to the AEPD on 26/XX/23 via administrative email, providing a stamped document from the official agency Correos y Telégrafos.

The responding party alleges the following: "that the camera referred to in the File has always been disconnected, and a contract and part of the company Securitas Direct España were also provided (...)".

The presence of devices, even if disconnected, may imply a reproach in other areas of law for the alleged infringement of personal privacy, as the presence of these can restrict individuals' freedom under the belief that they are being recorded by them, which is why it is recommended that they always be oriented towards private property, avoiding intimidation of public and/or private areas of third parties.

At the present time, there is no device in question that could process personal data.

It is noted that this agency can at any time visit the scene of the facts or request the collaboration of the competent Security Forces and Corps to verify the truthfulness of the facts.

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In the same way, the presence of an informational sign is only necessary in the case of cameras visible from the outside that affect the image capture area of third parties. Since these cameras have been uninstalled, the described obligation ceases, given that currently only motion sensors are in use. Any type of device should preferably be oriented towards one's own private property, avoiding the presence of such devices (even if they are fake) towards neighboring properties and/or public space, as such conduct may be considered gross negligence due to the simulation of a situation involving the capture of images of third parties (personal data).

Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party, it is considered that at the present time there is no device that could disproportionately affect the rights of third parties and that at the time of the events, the operability of such a device could not be accredited.

IV

Based on the above, after analyzing the allegations and evidence provided, the initially described irregular situation has been corrected to avoid any type of impact on third-party space, thus the rights of the complaining party have been duly protected following the intervention of this agency, ordering the filing of the current procedure.

The significance of the rights at stake is recalled, as well as the extensive obligations in this matter in the case of the installation of such devices by individuals, which can be consulted on the website of this AEPD www.aepd.es Guide to Video Surveillance, with a free orientation phone available in case of doubt regarding this matter, assuming in the case of new "irregular" actions the legal consequences that may arise from new conduct outside the current regulations.

Therefore, in accordance with the applicable legislation,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the present procedure as no administrative infringement has been accredited in the matter at hand.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the

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Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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